forest purposes, so far as such orders affect the above-described lands.

FRED G. AANDAHL,
Acting Secretary of the Interior.

AUGUST 19, 1954.

[F. R. Doc. 54-6691; Filed, Aug. 25, 1954; 8:49 a. m.]

[Public Land Order 996]

CALIFORNIA

REVOKING EXECUTIVE ORDER NO. 4270 OF JULY 20, 1925

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 c. 421 (36 Stat. 847; 43 U. S. C. 141) and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Order No. 4270 of July 20, 1925, temporarily withdrawing the following-described tract of public land for classification and pending enactment of legislation for its proper disposition is hereby revoked:

SAN BERNARDINO MERIDIAN

T. 4 N., R. 15 W.,
Sec. 15, NW¼NE¼, NE¼NW¼.

The area described contains 80 acres.

The land is located about thirty-five miles north of Los Angeles and it is approximately 100 feet from United States Highway 6; however, there is no public access thereto. The land is steep semi-desert hills covered with a growth of chamise, bush buckwheat, yucca, alfileria, and annual grasses. Except for a small area of about three acres, the land is very steep, covered with brush, and appears to be of low value for any purpose. However, the flat part of the land has good value for homesite purposes if access could be provided. The topography is flat and the surface and subsurface drainage is good. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy until they have been classified.

This order shall not otherwise become effective to change the status of the described lands until 10:00 a. m. on the 35th day after the date of this order. At that time the said lands shall become subject to application, petition, location, and selection under the applicable public-land laws, subject to valid existing rights, the provisions of existing withdrawals, the requirements of the applicable laws, and the 91-day preference-right filing period for veterans of World War II and others entitled to preference under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284), as amended.

Veterans preference-right applications under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284) may be filed on or before 10:00 a. m., of the 35th day after the date of this order, and those covering the same land shall be treated as though simultaneously filed at that time. Applications filed under the act after that time and during the succeeding 91 days shall be considered in the order of filing. Applications by non-veterans under the public-land laws, filed on or before 10:00 a. m. of the 126th day after the date of this order, shall be treated as though simultaneously filed at that time, where the applications are for the same lands; otherwise, priority of filing shall govern.

Inquiries regarding the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Los Angeles, California.

FRED G. AANDAHL,
Acting Secretary of the Interior.

AUGUST 20, 1954.

[F. R. Doc. 54-6688; Filed, Aug. 25, 1954; 8:48 a. m.]

TITLE 49—TRANSPORTATION

Chapter I—Interstate Commerce Commission

Subchapter B—Carriers by Motor Vehicle

PART 211—SCOPE OF OPERATING AUTHORITY; ROUTES

USE OF THE NEW YORK STATE THRUWAY BY MOTOR CARRIERS AUTHORIZED TO OPERATE OVER SPECIFIED PARALLEL HIGHWAYS

At a session of the Interstate Commerce Commission, Division 5, held at its office in Washington, D. C., on the 20th day of August A. D. 1954.

The above-entitled matter being under consideration:

It appearing, that this Commission has received inquiries from the New York State Thruway Authority and certain motor carriers regarding the entry of a general order authorizing the use of the New York State Thruway between the Buffalo interchange (Barrier Control No. 50) and the Westmoreland interchange (near Utica) as an alternate route by motor carriers holding authority to operate over other State and Federal highways between those points;

It further appearing, that the New York State Thruway is a modern toll highway in which there are improvements in design and construction over other highways in that region, including the elimination of cross traffic, reduction in grades, lengthening of curves, and widening of the pavement; that its use as an alternate route by motor carriers holding authority to operate over other highways which parallel the said Thruway between the points specified would promote economical operation, improve the service rendered to the public, serve purposes of national defense, and contribute to the promotion of safety on the highways; and that only in special and unusual instances will there exist reasons for denying to any carrier operating over such parallel highways permission to use the segment of the Thruway indicated as an auxiliary highway;

And it further appearing, that in general the use of the said segment of the Thruway as an alternate route as above indicated is and will be required by public convenience and necessity, in the case of common carriers, and consistent with the public interest and the national transportation policy declared in the Interstate Commerce Act, in the case of contract carriers, and the Commission so finding; therefore,

It is ordered, That Part 211 be, and it is hereby, amended by deleting the entire context of § 211.10 and substituting in lieu thereof the following:

§ 211.10 *Use of the New York State Thruway by motor carriers authorized to operate over specified parallel highways*—(a) *Conditions.* The segment of the New York State Thruway extending between the Buffalo interchange (Barrier Control No. 50) and the Westmoreland interchange (near Utica), and such additional highways as may be required in traveling by the shortest practicable route between authorized highways and the segment of the Thruway indicated in performing authorized operations, may be used as an alternate route, without obtaining prior authority therefor, by motor carriers subject to the Interstate Commerce Act who are authorized to operate in or through New York over U. S. Highway 20 and/or New York Highways 5, 20, 31, 33, 49, 78, 96, 173, 250, 263, 324, 332, and 365, subject in all instances to the following conditions:

(1) The carrier in each case shall give notice to the Commission, by letter, setting forth (i) a complete description by highway numbers of the carrier's authorized route between the point where it proposes to leave its authorized route and the point where it proposes to return to such route, (ii) a complete description by highway numbers of the proposed deviation route, including the portion of the Thruway to be used, between the point where it proposes to leave its authorized route and the point where it will return to such route, and (iii) a list of all known competitors, with a statement that a copy of such letter notice has been served on each of those listed.

(2) The letter shall contain a statement to the effect that the carrier filing the notice will continue to furnish reasonable and adequate service at all points it is now authorized to serve, that it will not serve new points or points it is not now authorized to serve, and that the use of the Thruway will not enable the carrier to engage in transportation between any points where because of the circuity of its present routes, or otherwise, such operation is not now practicable.

(3) The right to use the Thruway as an alternate route shall continue only so long as the carrier is entitled to use the highway or portion thereof described in its Certificate or Permit which parallels the Thruway, in performing service authorized under the Interstate Commerce Act, and only so long as the conditions specified herein are observed.

(b) *Protests.* Any party in interest may file a protest within 30 days from the date a carrier gives notice of intent to operate over the Thruway. Such protest may be in the form of a letter, should contain facts and information to support protestant's opinion that the carrier filing such notice cannot meet the terms of the above-specified conditions, and should reflect that a copy of the protest has been furnished to the carrier filing the notice. If such a pro-